

COMMISSION IMPLEMENTING DECISION

CELEX id	32014D0770
Document type	Decision
Policy domain	Production, technology and research
Year	2014
Legal actor type	Member state authority
Applicable role	Operator
Language	en

COMMISSION IMPLEMENTING DECISION

of 30 October 2014

confirming or amending the average specific emission of CO₂ and specific emissions targets for manufacturers of passenger cars for the calendar year 2013 pursuant to Regulation (EC) No 443/2009 of the European Parliament and of the Council

(notified under document C(2014) 7877)

(Only the Dutch, English, French, German, Italian, and Swedish texts are authentic)

(2014/770/EU)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EC) No 443/2009 of the European Parliament and of the Council of 23 April 2009 setting emission performance standards for new passenger cars as part of the Community's integrated approach to reduce CO₂ emissions from light-duty vehicles (1), and in particular the second subparagraph of Article 8(5) and Article 10(1) thereof,

Whereas:

(1)

The Commission is required, pursuant to Article 8(5) of Regulation (EC) No 443/2009, to confirm each year the average specific emissions of CO₂ and the specific emissions target for each manufacturer of passenger cars in the Union as well as for each pool of manufacturers formed in accordance with Article 7(1) of that Regulation. On the basis of that confirmation, the Commission is to determine whether manufacturers and pools have complied with the requirements of Article 4 of that Regulation.

(2)

Pursuant to Article 4 of Regulation (EC) No 443/2009 the average specific emissions of manufacturers for 2013 are calculated in accordance with the second paragraph of that Article and take into account 75 % of the manufacturer's new cars registered in that year.

(3)

The detailed data to be used for the calculation of the average specific emissions and the specific emissions targets is set out in point 1 of Part A and in Part C of Annex II to Regulation (EC) No 443/2009 and is based on Member States' registrations of new passenger cars during the preceding calendar year.

(4)

The 2013 data from all Member States (except for Croatia) were submitted to the Commission by 28 February 2014 in accordance with Article 8(2) of Regulation (EC) No 443/2009. Where, as a result of the verification of the data by the Commission, it was evident that certain data were missing or manifestly

incorrect, the Commission contacted the Member States concerned and, subject to the agreement of those Member States, adjusted or completed the data accordingly. Where no agreement could be reached with a Member State, the provisional data of that Member State was not adjusted.

(5)

On 30 April 2014, the Commission published the provisional data and notified 84 manufacturers of the provisional calculations of their average specific emissions of CO₂ in 2013 and their specific emissions targets in accordance with Article 8(4) of Regulation (EC) No 443/2009. Manufacturers were asked to verify the data and to notify the Commission of any errors within three months of receipt of the notification in accordance with the first subparagraph of Article 8(5) of that Regulation and Article 9(3) of Commission Regulation (EU) No 1014/2010 (2). Five manufacturers accepted the preliminary data without corrections whilst 42 manufacturers submitted notifications of errors within the given deadline.

(6)

For the remaining 37 manufacturers that did not notify any errors in the datasets or respond otherwise, the provisional data and provisional calculations of the average specific emissions and the specific emissions targets should be confirmed without adjustments.

(7)

The Commission has verified the corrections notified by the manufacturers and the respective justifications, and the dataset has been adjusted as appropriate.

(8)

In the case of records with missing or incorrect identification parameters, such as the type, variant, version code or the type approval number, the fact that manufacturers cannot verify or correct those records should be taken into account. As a consequence, it is appropriate to apply an error margin to the CO₂ emissions and mass values of those records.

(9)

The error margin should be calculated as the difference between the distances to the specific emissions target expressed as the average emission target subtracted from the specific average emissions calculated including and excluding those registrations that cannot be verified by the manufacturers. Regardless of whether that difference is positive or negative, the error margin should always improve the manufacturer's position with regard to its specific emission target.

(10)

In accordance with Article 10(2) of Regulation (EC) No 443/2009, a manufacturer should be considered as compliant with its specific emission target referred to in Article 4 of that Regulation where the average emissions indicated in this Decision are lower than the specific emissions target, expressed as a negative distance to target. Where the average emissions exceed the specific emissions target, an excess emission premium will be imposed in accordance with Article 9 of Regulation (EC) No 443/2009, unless the manufacturer concerned benefits from an exemption from that target in accordance with Article 2(4) or Article 11 of that Regulation or is a member of a pool in accordance with Article 7 of Regulation (EC) No 443/2009 and the pool complies with its specific emissions target. On that basis, two manufacturers should be considered exceeding their specific emission targets for 2013.

(11)

The average specific emissions of CO₂ from new passenger cars registered in 2013, the specific emissions targets and the difference between those two values should be confirmed accordingly,

HAS ADOPTED THIS DECISION:

Article 1

The values relating to the performance of manufacturers, as confirmed or amended for each manufacturer of passenger cars and for each pool of such manufacturers in respect of the 2013 calendar year in

accordance with Article 8(5) of Regulation (EC) No 443/2009, are specified in the Annex to this Decision. The values referred to in points (a) to (e) of Article 10(1) of Regulation (EC) No 443/2009 for each manufacturer of passenger cars and for each pool of such manufacturers in respect of the 2013 calendar year are also specified in the Annex to this Decision, with the exception provided for in Article 2(4) of that Regulation for the manufacturers concerned.

Article 2

This Decision is addressed to the following individual manufacturers and pools formed in accordance with Article 7 of Regulation (EC) No 443/2009:

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Audi AG

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38436 Wolfsburg

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(4)

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AVTOVAZ JSC

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Bentley Motors Ltd

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Bayerische Motoren Werke AG

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(10)

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Bugatti Automobiles S.A.S.

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Automobile Dacia SA
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Daihatsu Motor Co Ltd
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(21)

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Fisker Automotive and Technology Group LLC

Fisker Automotive GmbH

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It shall be published in the Official Journal of the European Union.

Done at Brussels, 30 October 2014.